

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 30-005
Amendments to Title 8 of the Chickasaw Nation Code
(Corrections)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted laws codified in Title 8 of the Chickasaw Nation Code, and

WHEREAS, the Tribal Legislature desires to amend those laws.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"TITLE 8

"8. ELECTIONS AND CAMPAIGNS"

CHAPTER 1
GENERAL PROVISIONS

SECTION 8-100.1
SECTION 8-100.2
SECTION 8-100.3
SECTION 8-100.4

PURPOSE.
DEFINITIONS.
CEREMONY.
RESERVED.

CHAPTER 2
CANDIDATES, FILING AND ADVERTISING

SECTION 8-200.1
SECTION 8-200.2
SECTION 8-200.3
SECTION 8-200.4

REQUIREMENTS OF OFFICE.
EMPLOYEES OF THE NATION.
FILING PERIOD.
FILING FEE; VOTER LISTS.

SECTION 8-200.5
SECTION 8-200.6
SECTION 8-200.7
SECTION 8-200.8
SECTION 8-200.9
SECTION 8-200.10
SECTION 8-200.11

ADDITIONAL MAILING LABEL FEES.
ACTIVITIES REPORT.
USE OF VOTER LISTS.
ELECTIVE OFFICE VACANCIES.
CHALLENGE TO CANDIDACY.
HEARING CHALLENGE, DECISION.
APPEAL.

CHAPTER 3 VOTING REGISTRATION AND RIGHTS

SECTION 8-300.1
SECTION 8-300.2
SECTION 8-300.3
SECTION 8-300.4
SECTION 8-300.5
SECTION 8-300.6
SECTION 8-300.7
SECTION 8-300.8

ELIGIBILITY TO VOTE, APPLICATION FOR
REGISTRATION.
VOTER REGISTRATION.
VOTER REGISTRATION CLOSING DATE.
RESIDENT AND NON-RESIDENT REGISTRATION.
RESERVED.
RESERVED.
CHALLENGE TO VOTER REGISTRATION;
ELIGIBILITY, WHEN MADE, HEARING AND DECISION.
FINAL DECISION.

CHAPTER 4 CONDUCT OF AN ELECTION

SECTION 8-400.1
SECTION 8-400.2
SECTION 8-400.3
SECTION 8-400.4
SECTION 8-400.5
SECTION 8-400.6
SECTION 8-400.7
SECTION 8-400.8
SECTION 8-400.9
SECTION 8-400.10
SECTION 8-400.11
SECTION 8-400.12
SECTION 8-400.13
SECTION 8-400.14
SECTION 8-400.15
SECTION 8-400.16
SECTION 8-400.17

MAIL BALLOTS.
BALLOT MAILING TO VOTERS.
RETURN DATE.
NO BALLOT WHEN NO CONTEST.
CANDIDATES ON BALLOTS.
PRINTING ON BALLOTS.
INNER ENVELOPE INFORMATION.
OUTER ENVELOPE INFORMATION, RETURN
ENVELOPE.
MARKING BALLOTS.
INVALID BALLOTS.
UNDELIVERABLE BALLOTS.
BALLOT COUNTING.
SINGLE BALLOT CAST.
OUTER ENVELOPE SIGNATURE.
TALLY RESULTS.
PRESERVATION OF BALLOTS.
PRESERVATION PERIOD.

<u>SECTION 8-400.18</u>	<u>CERTIFICATION OF ELECTION RETURNS.</u>
<u>SECTION 8-400.19</u>	<u>PERMISSION TO BE PRESENT/LEAVE ROOM.</u>
<u>SECTION 8-400.20</u>	<u>APPOINTMENT OF WATCHERS.</u>
<u>SECTION 8-400.21</u>	<u>WATCHER ELIGIBILITY.</u>
<u>SECTION 8-400.22</u>	<u>WATCHER FREEDOM.</u>
<u>SECTION 8-400.23</u>	<u>NO VOTE COUNTING.</u>
<u>SECTION 8-400.24</u>	<u>WATCHER OBJECTION.</u>
<u>SECTION 8-400.25</u>	<u>WATCHER SECRECY.</u>
<u>SECTION 8-400.26</u>	<u>RUNOFF ELECTION.</u>
<u>SECTION 8-400.27</u>	<u>RUNOFF ELECTION PROCEDURES.</u>
<u>SECTION 8-400.28</u>	<u>RECOUNT PERIOD.</u>
<u>SECTION 8-400.29</u>	<u>RECOUNT PROCEDURES.</u>
<u>SECTION 8-400.30</u>	<u>RECOUNT FEE.</u>
<u>SECTION 8-400.31</u>	<u>RESERVED.</u>

CHAPTER 5 SPECIAL ELECTIONS

<u>SECTION 8-500.1</u>	<u>SPECIAL ELECTION PROCEDURES AND</u>
	<u>REGULATIONS.</u>
<u>SECTION 8-500.2</u>	<u>DATES.</u>

CHAPTER 6 INITIATIVE PETITIONS

<u>SECTION 8-600.1</u>	<u>PURPOSE.</u>
<u>SECTION 8-600.2</u>	<u>FILING, NOTICE.</u>
<u>SECTION 8-600.3</u>	<u>ACTION UPON PETITION.</u>
<u>SECTION 8-600.4</u>	<u>CONDUCT OF ELECTION.</u>

CHAPTER 7 RECALL ELECTIONS

<u>SECTION 8-700.1</u>	<u>GENERAL PROVISIONS.</u>
<u>SECTION 8-700.2</u>	<u>ACTION UPON PETITION.</u>
<u>SECTION 8-700.3</u>	<u>CONDUCT OF RECALL ELECTIONS.</u>

CHAPTER 8 CONSTITUTIONAL AMENDMENT ELECTIONS

<u>SECTION 8-800.1</u>	<u>METHODS FOR AMENDING CONSTITUTION.</u>
<u>SECTION 8-800.2</u>	<u>ACTION UPON PETITION.</u>

SECTION 8-800.3
SECTION 8-800.4

CONDUCT OF ELECTION.
APPROVAL OF AMENDMENTS.

CHAPTER 9
MISCELLANEOUS ELECTION REGULATIONS

SECTION 8-900.1
SECTION 8-900.2

USE OF TRIBAL ASSETS PROHIBITED.
PENALTIES FOR IMPROPER USE OF TRIBAL ASSETS;
ENFORCEMENT.

CHAPTER 10
CAMPAIGN CONTRIBUTIONS AND EXPENDITURES

SECTION 8-1000.1
SECTION 8-1000.21
SECTION 8-1000.32
SECTION 8-1000.43
SECTION 8-1000.54
SECTION 8-1000.65
SECTION 8-1000.76

SECTION 8-1000.87

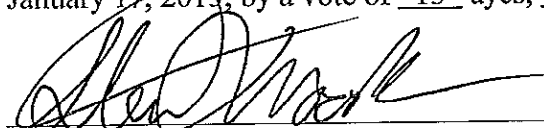
DEFINITIONS.
DISCLOSURE OF CAMPAIGN CONTRIBUTIONS.
DISCLOSURE STATEMENTS.
DUTY TO REPORT.
FAILURE TO FILE REPORTS; INACCURATE REPORTS.
RESERVED.
PENALTIES FOR FAILURE TO FILE REPORTS;
INACCURATE REPORTS; ENFORCEMENT.
APPEALS.

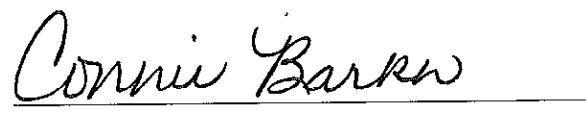
CHAPTER 11
BALLOT QUESTIONS - RULES AND PROCEDURES

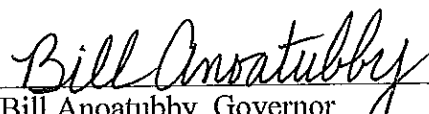
SECTION 8-1100.1
SECTION 8-1100.2
SECTION 8-1100.3

PURPOSE.
INTENDED SCOPE.
REQUIREMENTS FOR ITEMS TO APPEAR ON BALLOT."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on January 17, 2013, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JAN 17 2013



CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 30-005
Amendments to Title 8 of the Chickasaw Nation Code
(Corrections)

Explanation: This resolution corrects section numbers in Title 8 of the Chickasaw Nation Code.

Presented By: Election Rules and Regulations *Ad Hoc* Committee